

HEADNOTE

“1. If the appellant requests withdrawal of the appeal with respect to one or more of several appellees, the court of appeal decides on the admissibility and legal consequences of such a request. In doing so, the court of appeal considers whether the statement of grounds of appeal has already been served on the affected appellees, whether they insist that a decision on the appeal be rendered also in relation to them, and whether they have a legitimate interest in the decision.”

COURT

Court of Appeal Luxembourg

PATENT

EP 2 642 632

KEYWORDS

Appeal

Withdrawal

PROCEEDINGS

Procedural order

Wireless power receiver and method of manufacturing the same

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to a wireless power receiver and method of manufacturing the same. According to the headnotes of the decision, when an appellant seeks to withdraw an appeal against one or more of several defendants, the court of appeal must assess whether this withdrawal is admissible by considering factors such as whether the grounds of appeal have already been served, whether the affected defendants object to withdrawal, and whether they have a legitimate interest in receiving a decision on the merits.